

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE NO. 14-0036
Mental Health Counselor License of	)	
	)	
AMANDA BRUNE	)	SETTLEMENT AGREEMENT AND
License No. 001402	)	FINAL ORDER
Respondent.	)	

Pursuant to Iowa Code sections 17A.10 and 272C.3(4) (2013), the Iowa Board of Behavioral Science ("Board") and Amanda Brune ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. Respondent holds Iowa license number 001402 to practice mental health counseling, which expires on September 30, 2016.
2. The Board has jurisdiction over the parties and the subject matter of these proceedings.
3. The Board filed a Notice of Hearing and Statement of Charges against the Respondent on August 14, 2014. A contested case hearing on this matter is scheduled for November 6, 2014.
4. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Settlement Agreement.
5. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Settlement Agreement. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
6. Respondent is freely and voluntarily entering into this Order.
7. Respondent acknowledges that she has the right to be represented by counsel on this matter.
8. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
9. This Order is subject to approval by a majority of the full Board. If the Board fails to approve this Order, it shall be of no force or effect to either the Board or Respondent. If the Board approves this Order, it shall be the full and final resolution of this matter.

10. This Order shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
11. Respondent acknowledges and understands that this Order will be reported to the National Practitioner Data Bank.
12. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.
13. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

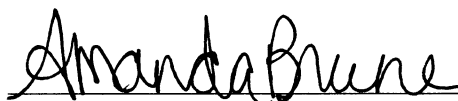
14. Respondent's license is hereby placed on **PROBATION** for a period of two (2) years, subject to the following terms and conditions:
 - a. Respondent shall maintain sufficient, timely, and accurate documentation in client records. Respondent shall only bill for services that have been provided.
 - b. Respondent shall obey all federal and state statutes and regulations governing the practice of mental health counseling.
 - c. Within thirty (30) days of Board approval of this Order, Respondent shall submit a proposed practice monitor and practice monitoring plan to the Board for approval. The proposed practice monitor shall be an Iowa-licensed mental health counselor. Practice monitoring shall commence upon Board approval of the monitor and the plan. Respondent shall provide the practice monitor with a copy of the Notice of Hearing and Statement of Charges as well as this Order. Respondent shall meet in a face-to-face setting with the practice monitor on a quarterly basis during the probation period to review and discuss the following topics: documentation, recordkeeping, billing, and ethics. During the meetings, the practice monitor shall review a random selection of Respondent's appointment records, billing records, and client case records to ensure that Respondent is complying with paragraph 14(a) of this Order. Respondent's practice monitor shall submit quarterly reports to the Board describing the dates of meetings held with Respondent, a summary of the discussion held at each meeting and records reviewed, the practice monitor's recommendations for further mentoring and monitoring, if any, and any other information the practice monitor deems relevant for the Board's review. Said quarterly reports are due on April 5, July 5, October 5, and January 5 of each calendar year during the probationary period. Respondent is responsible for all costs associated with practice monitoring.
 - d. During the probationary period, Respondent shall be restricted from being

directly responsible for submitting billing information to insurance companies, whether private or public. Respondent shall not be restricted from reporting work performed to a supervisor or employer for billing purposes.

- e. Respondent shall supply a copy of the Notice of Hearing and Statement of Charges as well as this Order to all current and future employers during the probationary period.
- f. Respondent shall complete three (3) hours of continuing education in the area of recordkeeping/billing and three (3) hours of continuing education in the area of ethics. Respondent shall submit certificates to the Board as proof of completion of this requirement. These hours are in addition to the standard continuing education requirements for license renewal. Respondent is responsible for all costs associated with obtaining the required continuing education.
- g. Respondent shall each submit quarterly reports to the Board describing her compliance with these probationary terms and conditions. Said quarterly reports are due on April 5, July 5, October 5, and January 5 of each calendar year during the probationary period.

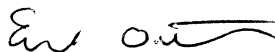
15. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645IAC 13 and 33.

This Settlement Agreement and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 8 day of October, 2014.



AMANDA BRUNE
Respondent

This Settlement Agreement and Final Order is accepted by the Iowa Board of Behavioral Science on the 6 day of November, 2014.



ERIK OOSTENINK, Chairperson
Iowa Board of Behavioral Science

cc: Laura Steffensmeier
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